Supreme Court, U.S.
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No. 96-1383

In The

Supreme Court of the United States

October Term, 1996

WILLIAM POUNDERS, Judge of the Superior Court of the State of California for the County of Los Angeles,

Petitioner,

vs.

PENELOPE WATSON,

Respondent.

On Petition for Writ of Certiorari to the United States Court of Appeals for the Ninth Circuit

RESPONDENT'S BRIEF IN OPPOSITION

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INTRODUCTION

Respondent requests that the Court deny the Petition for Writ of Certiorari seeking review of an opinion of the United States Court of Appeals for the Ninth Circuit. The Court of Appeals opinion is reported at 102 F.3d 433 (and was appended to the Petition for Writ of Certiorari). Petitioner, in that Petition, seeks certiorari from the final judgment of the United States Court of Appeals for the Central Ninth Circuit entered on December 13, 1996 (an order granting Respondent Watson's appeal of a denial of her Petition for Writ of Habeas Corpus in the United States District Court). Petitioner, Judge William Pounders of the California Superior Court, had sentenced Respondent (a criminal defense attorney) to two days in custody and she has served her two day sentence in the custody of the Sheriff of the County of Los Angeles, on September 16 through September 17, 1994, and is currently not in custody. She received a notice from the State Bar of California indicating that an investigation has begun with possible disciplinary consequences in regard to her ability to practice law related to her having been found in contempt by the Los Angeles County Superior Court.

The alleged contempt arose in the context of a murder trial in which Respondent's client had previously faced the death penalty, and now faced a potential sentence of life without the possibility of parole. Respondent's client was testifying that he had been the individual who has called "911" to report the burning of the victim. The client was revealing this information for the first time to anyone except his attorneys during the questioning by Respondent-Attorney, who was attempting to establish the client's motivation for having withheld these facts. Respondent was one of two attorneys representing her client in that trial.

Respondent, in her appeal to the Ninth Circuit Court of Appeals raised the United States constitutional issue of notice

and due process in that Respondent received no actual notice nor had no actual knowledge of the alleged admonition(s) by Los Angeles Superior Court Judge Pounders (which was/were made outside of her presence and to other attorneys on the case) and thus, the judgment and conviction of contempt for violation of said admonition(s) violated Respondent's right to due process pursuant to the Fifth and Fourteenth Amendments to the United States Constitution. *Picard v. Connor,* 404 U.S. 270, 275 (1971).

STATEMENT OF JURISDICTION

The Supreme Court could assert jurisdiction pursuant to 28 U.S.C. § 1254(1).

STATEMENT OF THE CASE

Respondent Penelope Watson, an attorney, was charged with direct contempt by a judge of the Los Angeles County Superior Court. Respondent respectfully opposes the Petition for Writ of Certiorari for numerous reasons, not the least of which is that the unanimous decision by the United States Court of Appeals for the Ninth Circuit was so narrowly construed, without even reaching the full import of Respondent's due process argument, as to leave little or no room for reasonable minds to differ. Unfortunately, Petitioner fails to include highly material and relevant facts in his statement of the case bearing on the issues decided below.

For example, Petitioner's summary of the case includes this incomplete, and thus misleading rendering of the facts:

> On April 7, 1994, an attorney for one of the co-defendant's in open court repeatedly raised the issue of the punishment the defendants faced. The trial judge stated categorically that possible punishment "is not

> a subject open to discussion. It should not be explored." On April 20, the attorney for a different co-defendant again raised the issue of punishment, and the trial judge stated again that such questioning is prejudicial and is not to be discussed. On April 21, Ms. Watson's co-counsel asked a series of seven questions in which he stated that the defendants were "looking at life in prison." At side bar, the trial judge told Ms. Watson's co-counsel that the matter was not to be discussed again.
>
> On June 21, 1994, Ms. Watson asked a question of her client that referred to the penalty he faced (life without parole). The trial judge warned her to follow the court's prior admonishments that the subject of prior punishments was not to be explored. Ms. Watson's next question of her client was, "You're facing life without the possibility of parole?"

(Petition at 2-3). Ms. Watson was then held in contempt by the court for failing to follow the court's previous admonishments to other counsel regarding possible punishment of the defendants. The question she had asked her client dealt with the effect of, having faced the death penalty until the beginning of trial, why her client had not revealed this information incriminating other defendants until that testimony.

What Petitioner fails to inform this Court is that Ms. Watson had no knowledge of the previous admonishments to other counsel. Ms. Watson had been ordered not to duplicate any efforts of her co-counsel, including reading transcripts of his

examinations (and thus reported bench conferences). She was not present at bench conferences which her co-counsel attended, and was not present at bench conferences in which any other attorney for co-defendants had been warned, admonished, or ordered regarding the use of information regarding possible punishment. Respondent had **no knowledge** of the court's orders. Further, Petitioner neglects to tell this Court the trial judge convicting Respondent of direct summary contempt had no facts before him demonstrating any knowledge by Respondent of the court's relevant orders.

Respondent was held in direct summary contempt for asking two questions, in the course of a three-month long murder trial. After the first question, Respondent was told to follow the court's previous admonitions (at which the giving of said admonitions Respondent was not present; Petitioner **could not and did not demonstrate any facts to the contrary,** although the issue was raised at the hearing after the finding of contempt), and after the second and rephrased question Respondent was held in contempt. The court did not ask if Respondent was aware of the admonitions given to others outside her presence. The questions were not disruptive, violent, abusive, nor threatening the dignity nor control of the court.

What then, was the urgent necessity for summary contempt? Could not a less onerous procedure be employed when no threat to the court was imminent? This is exactly what the Court of Appeals found; there was no reason, let alone necessity, for direct summary contempt given these facts. The Court of Appeals decision squarely found that summary contempt procedure in the circumstances of this case violate due process (Court of Appeals decision at App. 14 of Petitioner's brief).

While Petitioner attempts to capture the Court's attention with entreaties to the specter of federal court interference with

state court authority, half-truths and distortions are not appropriate.

REASONS FOR DENYING THE WRIT

What the unanimous decision of the Court of Appeals held was that the conduct of Respondent (without deciding whether Respondent willfully disobeyed a court order) in two isolated questions over a three-month long trial "did not constitute such an open, serious threat to orderly procedure that instant and summary punishment was necessary, given the principle that only [t]he least possible power adequate to the end proposed should be used in contempt cases." *United States v. Wilson*, 421 U.S. 309, 319 (1975); *In re Gustafson*, 650 F.2d 1017, 1022 (9th Cir. 1981) (en banc); *Harris v. United States*, 382 U.S. 162, 165 (1965). Not only was it unnecessary, the summary procedure was held violative of Respondent's due process rights given these facts. *In re Oliver*, 333 U.S. 257, 275-277 (1948).

Such a holding is not controversial nor does it fly in the face of authority, let alone California state court rulings, contrary to Petitioner's assertion.

The words of the California Supreme Court in *In re Hallinan*, 71 Cal. 2d 1179, 1183-1185, 81 Cal. Rptr. 1 (1969) may be instructive:

> It appears appropriate to once more emphasize as was done in *Gallagher v. Municipal Court*, supra, 31 Cal.2d 784, 789, that "The heat of courtroom debate, particularly where liberty is concerned, often gives rise to persistence on the part of counsel. If the words used by counsel are respectful and pertinent to the matter before

> the court, it is not unnecessarily burdensome to require the judge first to warn the attorney . . . [that his actions] tend to interrupt the due course of the proceeding . . . ." More recently this court again commented that the summary contempt power "must be exercised with great caution, lest it stifle the freedom of thought and speech so necessary to a fair trial under our adversary system."

In re Hallinan, supra, at 1185.

Attempting to waive a red "Ninth Circuit" flag at this Court by claiming that sufficient deference to state court findings had not been given by the Court of Appeals is inappropriate and unappealing. (*See* Petition at 5).

There is no issue that calls to this Court to review.

CONCLUSION

The writ of certiorari should be denied.

Respectfully submitted,

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